



KCAC Position Statement: Registration and Enforcing Registration of Kratom Products

In our first three position statements, we described the importance of avoiding kratom product [use in children](#), how [“7” products](#) have a characteristically different pharmacologic and clinical profile than kratom products and should not be marketed as kratom, and that kratom products should be [properly labeled](#) so people are aware of the risks and the proper doses.

An important way for a regulatory body, be it the Food and Drug Administration (FDA), a state or local based health regulatory body, or law enforcement to minimize these risks is first to be aware of the products that are being sold in their jurisdiction.

Registration of Dietary Supplement Products in the United States

The Dietary Supplement Health [and Education](#) Act of 1994 (DSHEA) states that manufacturers and distributors of dietary supplements are prohibited from marketing products that are adulterated or misbranded. That means that these firms are responsible for good manufacturing practices and for evaluating the safety and labeling of their products before marketing to ensure that they meet all the requirements of the Federal Food, Drug, and Cosmetic Act.

Unfortunately, there is no federal requirement that dietary supplement manufacturers or distributors alert regulatory authorities that their products are being sold to consumers so no one knows how many dietary supplements are being sold in the United States at any given time. By some estimates, there are approximately [30,000 dietary supplement products being sold yearly](#), the FDA believes over [95,000 products](#) are sold yearly, and there are currently over [196,000 different product labels](#) contained in the National Institutes of Health Dietary Supplement Label Database. The database requires federal agencies to identify products and upload the labels so even this figure of 196,000 products could be an underestimate. For example, there are only three product kratom labels included in the National Institutes of Health Dietary Supplement Label Database. However, [there are ~47 products](#) listed in the America Kratom Association list of approved kratom vendors alone, and most of them have multiple products for sale.

There is proposed federal [legislation called](#) the Dietary Supplement Listing Act that would require companies to provide the FDA with product names, domestic addresses, contact information, list of all ingredients, an electronic copy of the label, allergen statements, and the health and structure/function claims being made. However, it [has not passed](#) from 2022 through 2024 and its future passage is not known. [According to a Pew](#) Charitable Trust survey, a majority of Americans support these transparent labeling requirements for dietary supplements, including over 90% of Republicans and Democrats. When the limitations placed on the FDA is known, including a lack of transparency over which products are being sold to consumers, over 70% of consumers feel the FDA cannot adequately protect consumers from dietary supplement harm.

There would be multiple benefits from a transparent registration process. First, if a company discloses ingredients in their products that are synthetic, semi-synthetic, or otherwise banned, they can be easily



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detected by regulators or public health personnel. If the FDA or another regulatory entity subsequently bans a dietary ingredient, the companies with products containing that ingredient can be specifically alerted. If a company produced a product type that failed good manufacturing practice validation (heavy metal contamination, microbial contamination, lack of ingredient disclosure, inaccurate labeled dosing of ingredients), all the products that they manufacture can easily be determined for subsequent quality verification. If a company loses their registration due to an inability to guarantee good manufacturing practices or malfeasance, the vendors selling the product can quickly be alerted to avoid procuring the product moving forward.

Registration of Kratom Products and Vendors

In the absence of federal action, some states have passed Kratom Consumer Protection Acts (KCPA) to protect their citizens. For example, the KCPA from Utah stipulates that vendors that sell kratom products must be registered with the states and that the products that they sell must also be registered. To register a kratom product, the company must include the company name and address, the product name, the form the Kratom product is in (Raw Leaf, Capsule, Tablet, Powder, Liquid Tincture, Tea Bag, Concentrated Oil, Extract form, or gummy), and the company must provide a certificate of analysis to validate good manufacturing practices. Similarly, the vendors in Utah must register with the state and provide their address. This transparent process allows for easy identification of products and vendors that are not registered to facilitate enforcement of regulations.

Registration is an important step in protecting citizens but without adequate enforcement, the impact is limited. From October 10th to October 28th, a third-party audit firm unaffiliated with the State of Utah was sent to 28 kratom vendors and assessed their visible inventory. As such, there may be additional registered and unregistered kratom products as well as “7” products (“7” refers to products with high doses of 7-hydroxymitragynine which are not legitimate kratom products) that were not visible to the auditors. Twenty-six of 28 vendors (92.9%) were selling registered products and a vendor averaged selling 3.1 of these products (range 0 to 9 products).

Unfortunately, 24 of 28 vendors (85.7%) were also selling “7” products and a vendor averaged selling 3.0 of these products (range 0 to 11 products). In total, there were 23 unique “7” products that were being sold at various vendors in Utah. Additionally, 23 of 28 vendors (82.1%) were selling unregistered kratom products and a vendor averaged selling 2.6 of these products (range 0 to 5 products). All told, there were 16 unique unregistered kratom products that were being sold at these various vendors. These results suggest that consumers are highly likely to be exposed to “7” and unregistered kratom products in Utah when shopping at registered vendors in violation of state law.

Meaningful enforcement of vendor requirements will require more than the current system of voluntary compliance to encourage vendors to meet their obligations under the law.



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The GKCAC Believes That Every Kratom Vendor:

- Should be registered with the jurisdiction (federal, state, etc) that is enforcing the kratom regulations and the registration clearly identifies the vendor and their place of business.
- Should have defined penalties for selling products that violate KCPA regulations of that jurisdiction or for selling products in that jurisdiction without a valid vender registration.
- This list should be publicly available so kratom product manufacturers and distributors know if the vendors are legitimate.

The GKCAC Believes That Every Kratom Product:

- Should be registered before being sold in a jurisdiction so that legitimate products can easily be discerned from illegitimate ones.
- Identifies the company name and address, the product name, the form the Kratom product is in (Raw Leaf, Capsule, Tablet, Powder, Liquid Tincture, Tea Bag, Concentrated Oil, Extract form, or gummy), the label for the product (which complies with our proper labeling position statement) and the company must provide a certificate of analysis to validate good manufacturing practices.
- Should have defined penalties for being sold in jurisdictions where they are not registered.
- This list should be publicly available so vendors can easily know which products are registered for sale within their jurisdiction.